

Court No. - 3

Case :- WRIT - C No. - 6056 of 2024

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Thru. Collector / District Magistrate , Sitapur And Others

Counsel for Petitioner :- Niraj Singh, Sant Vijay Singh

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Shree Prakash Singh, J.

Heard learned counsel for the petitioner and Ms. Aprajita Bansal who appears for the Power Corporation.

This writ petition has been filed with the following main prayer:-

"issue a writ, order or direction in the nature of certiorari quashing the impugned Notice/ Demand Letter issued by the opposite party No. 3, the Tehsildar, Sadar, District- Sitapur directing the petitioner to deposit Rs. 1,42,572/- failing which to appear before him within a period of 15 days from the receipt of notice, as contained in Annexure No. 1 to this writ petition"

The learned counsel for the petitioner prays that the petitioner is admitting the electricity dues but due to poor financial condition he wants to pay the same by way of installments.

Ms. Aprajita Bansal has pointed paragraph 6.14 of the Electricity Supply Code, wherein an appropriate application can be moved by the petitioner before the Executive Engineer of the Electricity Distribution Division, who shall look into the matter and pass appropriate orders.

This petition is disposed off with a direction to the petitioner to approach the Executive Engineer under paragraph 6.14 of the Electricity Supply Code within a period of three days from today. If such an application is moved, the Executive Engineer shall look into the grievance of the petitioner and pass an appropriate order within a period of six weeks thereafter.

For a period of six weeks the impugned recovery shall be kept in abeyance subject to the final order to be passed by the opposite party no. 2.

It is clarified that the benefit of this order shall be available to

the petitioner only if he approaches the opposite party no. 2 within three days from today.

Order Date :- 15.7.2024

Anurag

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(Shree Prakash Singh,J.) (Mrs. Sangeeta Chandra,J.)